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Purchased by	:	GOOD EARTH ECO PROJECTS
Description of Document	:	Article 12 Bond
Description	:	ADVANCE AGREEMENT
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	GOOD EARTH ECO PROJECTS
Second Party	:	KAMALA VENKATARAMAN
Stamp Duty Paid By	:	GOOD EARTH ECO PROJECTS
Stamp Duty Amount(Rs.)	:	500 (Five Hundred only)

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EKAMBA (Multi-State) - 560 060.
BILEKENGERI, Tal.:BANGALORE, Dist.:BANGALORE.

Please write or type below this line

DEPOSIT AGREEMENT

This **DEPOSIT AGREEMENT** is made and entered into on this the **Nineteenth Day of September Two Thousand and Twenty Two (19/09/2022)**

BY AND BETWEEN:

For Good Earth Eco Projects

Partner

Statutory Alert:
The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
The onus of checking the legitimacy is on the users of the certificate.
In case of any discrepancy please inform the Competent Authority.

M/s GOOD EARTH ECO PROJECTS, a Partnership firm, (PAN - AAIFG8316P) having office at Nos. 9, 10 & 11, 2nd Floor, Tarana, Good Earth Malhar, Kambipura, Kengeri, Bangalore-560074 represented by its Partner, **Mr. Parthasarathy S** hereinafter called the "**FIRST PARTY**"

AND

Mrs KAMALA VENKATARAMAN, W/o Mr CHANDRAMOULI VIJJHALA, aged about 48 years,(**PAN – ACJPV4269P**) Boulevard 4, Good Earth Orchard, Doddabelle Road, Kengeri, Bangalore - 560060 hereinafter referred to as the "**SECOND PARTY**"

The terms and expressions "**FIRST PARTY**" and "**SECOND PARTY**" shall wherever the context so require or admit be deemed to mean and include his/her/their respective heirs, legal representatives, administrators, executors, successors and assignees.

WHEREAS

The **FIRST PARTY** is in the process of acquiring lands in Kambipura, Kengeri Hobli, Bangalore South Taluk area for a Residential Housing Project.

The **FIRST PARTY** has identified initial approx. 10 acres of land and applied for its conversion and the conversion is expected to come by 120 days from this date.

The **FIRST PARTY** is planning to obtain Plan sanction and commence its construction activities within approx. 12 months from this date.

WHEREAS the **FIRST PARTY** herein is interested to collect funds by way of interest bearing deposit from various parties for the development of the above said project.

WHEREAS the **SECOND PARTY** had advanced **Rs. 25,00,000 /-** (Rupees Twenty Five Lakhs only) as loan on **18/09/2019 and Rs 30,00,000/-** (Rupees Thirty Lakhs only) as loan on 22-09-2022 to the FIRST PARTY as per the Agreements signed between them on 18-09-2019 for three years ending on 18-09-2022 and on 23-09-2020 for two Years ending 23-09-2022 and both the parties now wish to continue the Agreement for another Three years effective from 23-09-2022.

The various terms and conditions in this regard have been mutually discussed and are agreed to between the parties and it is desired to enter into an agreement.

NOW THEREFORE, THIS AGREEMENT IS ENTERED INTO AND WITNESSETH AS FOLLOWS: -

1. The **SECOND PARTY** has made the payment of **Rs.55,00,000 /-** (Rupees Fifty Five Lakhs only) vide check payments/online transfers as detailed below to the FIRST PARTY'S HDFC Bank account.

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Date of Payment	Amount Paid Rs	Mode of Payment	Bank
18-09-2019	25,00,000	Check No 000048	HDFC BANK
22-09-2020	30,00,000	Check No 970101	ICICI BANK

2. The minimum lock–in period of the deposit amount is three years. Upon completion of three years from **23-09-2022** i.e., on **23-09-2025** , the Second Party will be entitled to receive back the full deposit of **Rs. 55,00,000/-** (Rupees Fifty Five Lakhs only). The Second Party shall receive a return of **14 %** p.a. for the said deposit of **Rs. 55,00,000** - (Rupees Fifty Five Lakhs only). The interest is payable **every six months in arrears** (ie, Rs. 3,85,000/- less TDS every six months) and is effective from **23-09-2022** on pro-rata basis and shall be paid by bank transfer to the account of the **SECOND PARTY** as per the schedule below:

a. On or before 23-03-2023 - Bank transfer for Rs. 3,85,000/- less TDS
b. On or before 23-09-2023 - Bank transfer for Rs. 3,85,000/- less TDS
c. On or before 23-03-2024 - Bank transfer for Rs. 3,85,000/- less TDS
d. On or before 23-09-2024 - Bank transfer for Rs. 3,85,000/- less TDS
e. On or before 23-03-2025 - Bank transfer for Rs. 3,85,000/- less TDS
f. On or before 23-09-2025 - Bank transfer for Rs. 3,85,000/- less TDS

If there is any delay in payment of interest amount the **FIRST PARTY** shall pay a penalty to the **SECOND PARTY** for the delayed period calculated at **18 %** per annum of the delayed interest amount.

3. Simultaneous to the execution of this Agreement, the First Party will hand over to the SECOND PARTY a post-dated check for **Rs.55,00,000/- (Rupees Fifty Five Lakhs only)** drawn in favor of the SECOND PARTY bearing number _____, dated 23-09-2025, of HDFC Bank Ltd, towards repayment of the deposit amount. Any extension of the Agreement period beyond 3 years will be upon mutual agreement of the Parties in multiples of 12 months.

4. In the event the First Party fails to make the repayment of the amount upon completion of three years from **23-09-2022**, the Second Party shall be entitled to receive penalty calculated at the rate of **18%** per annum for the delayed period of the total deposit amount due and remaining but the deposit shall be repaid by the First Party within 90 days of the maturity date unless otherwise mutually agreed by both the parties. The penalty payment shall not affect other rights of the Second Party under law or equity, including the rights to claim liquidated damages for the default of the First Party.

5. The Second party understands that the funds raised will be used by the First Party for the aforesaid project. However in the unlikely event of the Second party needing the deposit for any personal emergencies ahead of the agreed lock in period the First Party agrees to return the deposit partially or in full, as requested in writing, within a reasonable time of 30 days. However the interest for this entire premature period shall be calculated at 2% less than the interest agreed before (14%) retrospectively from the date of this agreement till the date of return of the amount so returned

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6 The First Party represents and warrants to the Second Party that:

a. The First Party has obtained all permissions and corporate approvals for entering into this Agreement and this Agreement constitutes the legal, valid and binding obligation of the First Party and is enforceable in accordance with its terms.

b. The First Party has obtained all requisite approvals and consents required for the execution of this Agreement.

c. The execution and delivery of this Agreement will not violate any agreement to which the First Party is a party.

7 The First Party undertakes not to act in any manner which may cause any obstruction or restrict the assertion of the Second Party's rights under this Agreement.

8 Further, the First Party agrees that, from time to time, upon the written request of the Second Party, it shall, at its own cost, execute and deliver such other documents and do such other acts and things as the Second Party may request in order to secure the Second Party's interests and to fully effect the purpose of this Agreement.

9 The First Party agrees to indemnify and keep the Second Party indemnified against all costs, expenses, damages or losses that the Second Party may incur or suffer due to any failure to perform its obligations pursuant to this Agreement.

10 The **SECOND PARTY** has appointed **CHANDRAMOULI VIJJHALA** (PAN ABTPC4975E) as her nominee for this Agreement.

IN WITNESS WHEREOF, the parties hereto have signed this deed on the date and year written above

Signed and Delivered by the FIRST PARTY

For Good Earth Eco Projects

Partner

(PARTHASARATHY S)

Signed and Delivered by the SECOND PARTY

(KAMALA VENKATARAMAN)

In the presence of following Witness: -

Name and Address	Signatures
1. _____	_____
2. _____	_____

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